



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

February 23, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202106173 (Incident Date: August 29, 2021) regarding Police Officer Carlos Ponce, Tax No. 953263 (DADS No. 2022-27512)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that the scooter accident involving Police Officer Ponce does not constitute "Force, Abuse of Authority, Discourtesy or Offensive Language (FADO)" misconduct, as defined under Chapter 18-A, Section 440 (c) (1) of the New York City Charter.

In this matter, Police Officer Ponce properly seized the complainant's unregistered scooter, which was being operated by an unlicensed third party who failed to yield to a pedestrian. While attempting to transport the scooter to the stationhouse for invoicing, Police Officer Ponce accidentally toppled the scooter causing damage. As noted by the CCRB investigator, Police Officer Ponce took photos of the scooter, had a Police Accident Report prepared and otherwise accounted for the damage caused by the accident.

While the Police Commissioner fully acknowledges CCRB's authority to investigate damaged property under the Abuse of Authority doctrine, the Police Commissioner does not find that accidental damage to property falls under that doctrine. Thus, police-involved accidents; even ones involving property in the care and control of the Department, are to remain under the purview of the NYPD for investigation purposes.

Therefore, based on the foregoing, Police Officer Ponce will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Property Damage).

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

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